

NOTICE OF INTENT to Sole Source

SOLICITATION NUMBER:

75N95025Q00161

TITLE:

Maintenance and Service Agreement for Siemens Magnetom Terra 7T MRI Scanner

CLASSIFICATION CODE:

J066	Maintenance and Repair of Instruments and Laboratory Equipment
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NAICS CODE:

811219 – Other Electronic and Precision Equipment Repair and Maintenance

RESPONSE DATE:

March 21, 2025

PRIMARY POINT OF CONTACT:

Frederick Weddington, Contract Specialist
NINDS Contracts Management Branch, NIDA
Frederick.Weddington@nih.gov

DESCRIPTION:

THIS IS A PRE-SOLICITATION NOTICE OF INTENT TO AWARD ON A SOLE SOURCE BASIS. THIS IS NOT A REQUEST FOR QUOTE/PROPOSALS.

On behalf of the National Institute of Neurological Disorders and Stroke (NINDS), the Office of Acquisitions Contracts Management Branch Red, NINDS Section of the National Institute on Drug Abuse (NIDA), intends to solicit on a sole-source basis by a request for quotation to Siemens Medical Solutions USA, Inc. to acquire maintenance services for a Siemens Magnetom Terra 7T MRI Scanner on or around March 24, 2025 with an award issued on or around April 1, 2025. The purpose of this acquisition is to acquire preventative maintenance and service for an existing Government-owned Magnetom Terra 7T MRI scanner that was originally manufactured by Siemens Medical Solutions USA, Inc. These maintenance services shall be provided by an Original Equipment Manufacturer (OEM)-Authorized Service Provider of the Siemens Magnetom Terra 7T MRI Scanner, and all maintenance services shall be performed by OEM certified factory-trained technicians using OEM certified parts.

NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE and SET ASIDE STATUS

The intended procurement is classified under NAICS code 811219 with a Size Standard of \$22M.

This acquisition is NOT set aside for small businesses, but rather is a sole-source acquisition to Siemens Medical Solutions.

REGULATORY AUTHORITY

This acquisition is conducted under the authority of section 4202 of the Clinger-Cohen Act of 1996.

BACKGROUND, PURPOSE AND OBJECTIVES OF REQUIREMENT

The National Institute of Neurological Disorders and Strokes (NINDS) supports research into the causes, treatment, and prevention of neurological disorders and stroke. This request originates from the NIH MRI Research Facility (NMRF) in the intramural program of NINDS, NIH. The NMRF owns and operates a Siemens MAGNETOM Terra 7T Magnetic Resonance Imaging Scanner that is used by the NIH research community. This system is used for clinical and preclinical research. To continue to support cutting-edge research using high-field MRI performed by the NIH scientific community, it is essential to maintain and service this equipment on a regular maintenance schedule.

CONTRACTING WITHOUT PROVIDING FOR FULL OR OPEN COMPETITION (INCLUDING BRAND-NAME) DETERMINATION

The Siemens Magnetom Terra 7T MRI Scanner is an advanced MRI system comprised of proprietary components and highly specialized subsystems. Siemens Medical Solutions USA, Inc. (Siemens) is the only source for factory trained and certified technicians to maintain and service the 7T MRI scanner. Siemens engineers have unique knowledge of this proprietary scanner because they have been specially trained to service this equipment.

Due to the exclusive design of the Siemens Magnetom Terra 7T MRI scanner, the MRI Scanner can only be repaired and serviced with compatible Siemens components. Only an OEM-authorized service provider has access to the latest services and support information. Replacement parts or accessories must be compatible with the existing scanner, and only Siemens can certify compatibility. An OEM-authorized service provider is the only source with direct access to these parts and labor.

Siemens is the only source authorized by the OEM to provide maintenance services for the Magnetom Terra 7T MRI Scanner. Because of the significant investment by NINDS in the purchase of this equipment, using an OEM-Authorized Service Provider is essential for maintaining the integrity of the system.

In accordance with FAR part 10, extensive market research was conducted to reach this determination. Specifically, a Small Business Sources Sought notice was posted to the System for Award Management (SAM) ; it referenced the above requirements and no responses were received. Additionally, contact with knowledgeable individuals both in industry and Government, as well as reviews of available product literature, revealed no other sources. A review of the GSA Advantage, Dynamic Small Business Search, and previous Government acquisitions returned no results that meet all requirements. Finally,

the Contracting Specialist contacted the OEM in February 2025 and confirmed that Siemens is the only OEM-authorized service provider for this equipment. Therefore, only Siemens is found to be capable of meeting the needs of this requirement.

The intended source is:
Siemens Medical Solutions USA, Inc.
40 Liberty Blvd
Malvern, PA, 19355-1418

Salient characteristics:

This is a service and maintenance requirement for the MAGNETOM Terra 7T scanner. Independently and not as an agent of the Government, the Contractor shall furnish all the necessary services, qualified personnel, material, equipment, and facilities, not otherwise provided by the Government as needed to provide preventative maintenance and service for the Siemens Magnetom Terra 7T MRI scanner, including the magnet, computer, and all other electrical components and accessories supplied by Siemens for the NMRF. The Contractor shall supply all replacement parts (good-as-new) to maintain the equipment at OEM specifications. The Contractor shall provide on-site remedial service and maintenance as well as regular scheduled maintenance inspections and adjustments for all subsystems of the scanner. The contractor shall provide technical support and remote diagnostics as well as checks of the system error logs. The Contractor shall provide all necessary documentation, repair parts, spare parts, accessories, maintenance supplies, all special tools, test and support equipment, travel and transportation, personnel skill requirements, and other related services required in performance of maintenance tasks to keep the equipment in good operating condition.

Estimated Period of Performance:

Base year plus one (1) year option period

Place of Performance:

Room 10/B1D305
National Institutes of Health
10 Center Drive
Bethesda, MD 20892

Contract Type:

A firm-fixed price type contract with option periods is planned for this acquisition, consistent with commercial practices.

CLOSING STATEMENT

THIS NOTICE OF INTENT TO AWARD ON A SOLE-SOURCE BASIS IS NOT A REQUEST FOR COMPETITIVE PROPOSALS. However, interested parties may identify their interest and capability to respond to this notice.

A determination by the Government not to compete this proposed contract based upon responses to this notice is solely within the discretion of the Government. All responsible sources may submit a capability statement, proposal, or quotation which shall be

considered by the agency. The information received will normally be considered solely for the purposes of determining whether to proceed on a non-competitive basis or to conduct a competitive procurement.

Responses to this notice shall contain sufficient information to establish the interested parties' bona-fide capabilities for fulfilling the requirement and include: unit price, list price, shipping and handling costs, the delivery period after contract award, the prompt payment discount terms, the F.O.B. Point (Destination or Origin), the Dun & Bradstreet Number (DUNS), the Taxpayer Identification Number (TIN), and the certification of business size. All offerors must have an active registration in the System for Award Management (SAM) www.sam.gov. All responses must provide evidence that they can provide equipment that meets all of the requirements in this announcement.

All responses must be received by the closing date and time of this announcement and must reference the solicitation number, 75N95025Q00161. Responses must be submitted electronically to Frederick Weddington, Contract Specialist, Contracts Management Branch – Red, NINDS Section, NIDA, at Frederick.weddington@nih.gov and kelly.dempsey@nih.gov. U.S. Mail and Fax responses will not be accepted.